

SENATE/HOUSE FILE _____
BY (PROPOSED DEPARTMENT OF
PUBLIC SAFETY BILL)

A BILL FOR

1 An Act designating kratom as a schedule I controlled substance,
2 and making penalties applicable.
3 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

1 Section 1. Section 124.204, subsection 4, Code 2026, is
2 amended by adding the following new paragraph:

3 NEW PARAGRAPH. *cq.* Kratom, meaning any product or
4 ingredient containing any of the following:

5 (1) Any part of the leaf of the *Mitragyna speciosa*
6 plant if the plant contains the alkaloid mitragynine or
7 7-hydroxymitragynine.

8 (2) A synthetic material that contains the alkaloid
9 mitragynine or 7-hydroxymitragynine.

10 EXPLANATION

11 The inclusion of this explanation does not constitute agreement with
12 the explanation's substance by the members of the general assembly.

13 This bill designates kratom as a hallucinogenic schedule I
14 controlled substance.

15 A person possessing kratom is guilty of a serious
16 misdemeanor for a first offense. A person who commits a
17 subsequent violation is guilty of an aggravated misdemeanor.
18 A person who has previously been convicted two or more times
19 is guilty of a class "D" felony. A serious misdemeanor is
20 punishable by confinement for no more than one year and a fine
21 of at least \$430 but not more than \$2,560. An aggravated
22 misdemeanor is punishable by confinement for no more than two
23 years and a fine of at least \$855 but not more than \$8,540. A
24 class "D" felony is punishable by confinement for no more than
25 five years and a fine of at least \$1,025 but not more than
26 \$10,245.